

PAYMENT AGREEMENT ADDENDUM

Date: January 2025

PARTIES

SERVICE PROVIDER (Developer):

Name: Enock Kibe Ngunyi

Phone: 0735663656

Email: kibeenock7390@gmail.com

CLIENT:

Name: Mrs. Eunice Waweru

Organization: Workers Rights Watch

Phone: +254(0)775366920

Email: info@workersrightswatch.org

REFERENCE

This addendum modifies the payment terms of the **Website Development & Maintenance Agreement** signed on _____, 2025.

REVISED PAYMENT TERMS

Original Contract Amount

- Original Total: KES 85,000
- Revised Total: KES 62,000
- Discount Given: KES 23,000 (27% discount)

Revised Payment Schedule

Payment 1 (Deposit):

- Amount: KES 25,000

- Due Date: Upon signing this addendum (January 2025)
- Payment Method: Cheque
- Cheque Number: _____
- Bank: _____
- Status: ☐ Received ☐ Cleared

Payment 2:

- Amount: **KES 25,000**
- Due Date: **January 31, 2025**
- Payment Method: Post-dated Cheque (to be provided NOW)
- Cheque Number: _____
- Bank: _____
- Cheque Date: January 31, 2025

Payment 3 (Final):

- Amount: **KES 12,000**
- Due Date: **May 31, 2025** (or when donor funds received, but no later than July 31, 2025)
- Payment Method: Post-dated Cheque (to be provided NOW)
- Cheque Number: _____
- Bank: _____
- Cheque Date: May 31, 2025

TOTAL REVISED AMOUNT: KES 62,000

LATE PAYMENT TERMS

If Payment 3 is not made by May 31, 2025:

- **Late Fee:** 5% per month on outstanding balance
- **Maximum Extension:** Until July 31, 2025
- **After July 31, 2025:** Additional 10% penalty applies

Example:

- If paid in June 2025: KES 12,000 + 5% (KES 600) = KES 12,600
- If paid in July 2025: KES 12,000 + 10% (KES 1,200) = KES 13,200

WEBSITE RELEASE & ACCESS TERMS

Stage 1: After Payment 1 Clears (KES 25,000)

Conditions:

- First cheque must clear in bank (3-5 business days)
- Post-dated cheques for Payments 2 & 3 must be provided
- Commitment letter must be signed

What Client Gets:  Website goes LIVE on temporary/test domain (test.workersrightswatch.org)

-  All features fully functional
-  Can show website to board, donors, stakeholders
-  Can use for fundraising and awareness
-  View-only access to admin panel

What Developer Retains:  Full admin control and access

-  Ability to suspend access if payments fail
-  Website hosted on developer's temporary server

Stage 2: After Payment 2 Clears (KES 50,000 Total)

What Client Gets:  Website moves to MAIN DOMAIN (workersrightswatch.org)

-  Limited admin access for content updates
-  Can update: text, images, news, events
-  Email notifications working

What Developer Retains:  Root admin access

-  Control over payment gateway settings
-  Ability to suspend if final payment fails

Stage 3: After Payment 3 Clears (KES 62,000 Total)

What Client Gets:  FULL admin access and ownership

-  All passwords and credentials
-  Complete website documentation
-  Source code (if requested)
-  30-day free support period begins
-  Monthly maintenance contract begins

Developer Responsibilities End:  Full ownership transfer complete

-  Developer removes admin access

✓ Client has complete control

CHEQUE MANAGEMENT

Post-Dated Cheques Required NOW

Client must provide TWO post-dated cheques before website launch:

Cheque 1:

- Amount: KES 25,000
- Date: January 31, 2025
- To be deposited: January 31, 2025
- Valid until: July 31, 2025 (6 months from issue)

Cheque 2:

- Amount: KES 12,000
- Date: May 31, 2025
- To be deposited: May 31, 2025
- Valid until: November 30, 2025 (6 months from issue)

Bounced Cheque Policy

If any cheque bounces:

1. Website access suspended immediately
2. Client notified within 24 hours
3. Payment must be made within 7 days
4. KES 2,000 bounced cheque fee applies
5. Access restored after payment clears

CLIENT COMMITMENTS

Client agrees to:

1. ☐ Provide first payment (KES 25,000) upon signing
2. ☐ Provide TWO post-dated cheques immediately

3. ☐ Sign commitment letter (attached)
4. ☐ Ensure all cheques are valid and funded
5. ☐ Notify developer if payment dates need to change (minimum 14 days notice)
6. ☐ Not request full admin access until final payment

DEVELOPER COMMITMENTS

Developer agrees to:

1. ☐ Launch website on test domain after Payment 1 clears
2. ☐ Move to main domain after Payment 2 clears
3. ☐ Transfer full ownership after Payment 3 clears
4. ☐ Provide 30-day support after final payment
5. ☐ Not suspend access if payments are on schedule
6. ☐ Provide monthly maintenance as per original contract

PAYMENT TRACKING

Payment	Amount	Due Date	Cheque #	Date Cleared	Status
1	KES 25,000	Jan 2025	_____	_____	☐ Paid
2	KES 25,000	Jan 31, 2025	_____	_____	☐ Paid
3	KES 12,000	May 31, 2025	_____	_____	☐ Paid

WHAT REMAINS UNCHANGED

The following terms from the original contract remain in full effect:

- Monthly maintenance fee: KES 5,000/month (starts after final payment)
- 30-day free support period after final payment
- Intellectual property transfers after full payment
- All warranties and support terms
- Confidentiality obligations

- Dispute resolution procedures

SPECIAL CONDITIONS

1. Donor Funding Clause:

- If donor funds arrive before May 31, 2025, Payment 3 can be made early
- No penalty for early payment
- Early payment appreciated and encouraged

2. Emergency Extension:

- If genuine emergency prevents May payment, client must notify by May 15, 2025
- Maximum extension to July 31, 2025 with 5% monthly late fee
- Must provide written explanation and new payment date

3. Website Suspension:

- Developer reserves right to suspend website if any payment is more than 14 days late
- 48-hour notice will be given before suspension
- Access restored within 24 hours of payment clearing

AGREEMENT ACCEPTANCE

By signing below, both parties agree to these revised payment terms and conditions.

CLIENT SIGNATURE

Name: Mrs. Eunice Waweru

Title: Executive Director, Workers Rights Watch

Signature: _____

Date: _____

Organization Stamp: (If available)

DEVELOPER SIGNATURE

Name: Enock Kibe Ngunyi

Signature: _____

Date: _____

ID Number: _____

WITNESS (Optional but Recommended)

Name: _____

Signature: _____

Date: _____

ID Number: _____

ATTACHMENTS

1. ☐ Commitment Letter (signed)
2. ☐ Cheque Receipt for Payment 1
3. ☐ Copy of Post-dated Cheque 1 (KES 25,000)
4. ☐ Copy of Post-dated Cheque 2 (KES 12,000)
5. ☐ Original Website Development Contract

IMPORTANT NOTES:

- ⚠ This addendum supersedes Section 3.A (Payment Terms) of the original contract
- ⚠ All other terms of the original contract remain in full force
- ⚠ Both parties must keep signed copies for their records
- ⚠ Any further changes must be in writing and signed by both parties

Document Version: 1.0

Created: January 2025

Valid Until: Full payment received or July 31, 2025 (whichever comes first)